

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

August 20, 2026

**Judge R. Shawn Nelson
Department C10**

Department C10 hears law and motion on Thursdays at 10:00 a.m. and 1:30 p.m.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5210. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit to the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording, and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling.

NO.	CASE NAME	MATTER
10:00 a.m.		
1	National Funding, Inc. vs. Segler Concrete Finishing LLC	Counsel Paris Page moves to be relieved as counsel of record for Defendant Segler Concrete Finishing LLC. For the following reasons, the motion is CONTINUED to September 24, 2026 at 01:30 PM in this Department. Counsel Paris Page moves to be relieved as counsel of record for Defendant Scott Segler. For the following reasons, the motion is CONTINUED to 09/24/2026 in this Department. The court record includes insufficient proof of service. The purported proof of service appears to include a clerical error, as it was signed 02/26/2026 states under penalty of perjury the moving papers were "served" three days in the future, on 03/02/2026. (See ROA # 54.) The court record

		shows no opposition by Clients or any indication Defendants received notice of the motion and hearing date. In addition, there is no proof the moving papers were not served on Plaintiff. The moving papers must be served on all parties who have appeared in the action, whether or not the motion seeks relief against such parties. (See Code Civ. Proc., § 1014 [requiring service of all papers on defendants after appearance].) No later than nine (9) court days before the continued hearing, Moving Counsel shall file proof of service of all moving papers on Clients and on all parties who have appeared in this action. Clients Segler Concrete Finishing LLC and Scott Segler may file and serve a response or opposition no later than five (5) court days before the continued hearing. Moving Counsel shall provide notice of this ruling and continued hearing date on the client by non-electronic means and all parties who have appeared in this action.
1:30 p.m.		
1		
2	Hulsey vs. Nguyen	Cross-Defendant Rickie Hulsey’s motion regarding satisfaction of judgment, determination of legal effect of tender, and to toll post-judgment interest is DENIED. Cross-Defendant Rickie Hulsey moves for an order finding that Hulsey made good faith efforts to satisfy the judgment against him and to toll and stop the accrual of post-judgment interest under Code of Civil Procedure section 685.030. Hulsey contends that Hulsey obtained sufficient funds to satisfy the judgment in full, but that Hulsey was unable to complete payment due to the absence of a workable method for acceptance. Cross-Complainant contends that a complete satisfaction of the judgment as of July 2025 was \$36,758.24, consisting of \$27,737.77 in principal and \$9,020.47 in accrued interest from February 2023 through May 2026. Cross-Defendant tendered payment of \$27,737.77 in July 2026. Because payments apply first to accrued interest, there is an unpaid principal balance of \$9,020.47 still remaining. Here, Cross-Defendant Hulsey does not provide any authority to stop the accrual of interest despite Hulsey’s payment of \$27,737.77 in July 2026. Hulsey cites to Code of Civil Procedure section 685.030(b), which states: “If a money judgment is satisfied in full other than pursuant to a writ under this title, interest ceases to accrue <i>on the date the judgment is satisfied in full.</i>” (emphasis added).

		There is insufficient evidence that the judgment here was satisfied in full. “The amount required to satisfy a money judgment is the total amount of the judgment, plus costs added after judgment (including attorney fees), plus accrued interest on the judgment, less payments and any amounts no longer enforceable.” (<i>Lucky United Properties Investment, Inc. v. Lee</i> (2010) 185 Cal.App.4th 125, 139 (citing Code of Civ. Proc. § 695.210) (emphasis added)). “Payment on a judgment is allocated first to accrued interest on the principal amount, and then to the principal.” (Id.) As such, under these principals, Hulsey’s payment of \$27,737.77 first applied to the accrued interest due on the total judgment amount of \$36,758.24, leaving a balance of \$9,020.47 in principle still owed. Hulsey’s payment constitutes partial satisfaction of the judgment. “If a money judgment is partially satisfied pursuant to a writ under this title or is otherwise partially satisfied, interest ceases to accrue as to the part satisfied on the date the part is satisfied.” (Code Civ. Proc., § 685.030(c)). Accordingly, interest continues to accrue only on the unsatisfied portion of the award, or \$9,020.47. Hulsey cites to no authority that suggests otherwise. The motion is, therefore, denied. Moving party to give notice.
3		
4	Adjemian vs. Gallo	Plaintiff and Cross-Defendant Kevork Adjemian moves to set aside the default entered against him on the Cross-Complaint filed by Cross-Complainant John Mussen. For the following reasons, the motion is GRANTED. The proof of service attached to the motion reflects service of an ex parte application for order setting aside the default, as opposed to the instant motion to set aside the default. However, this defect in service is immaterial, and Mussen opposed the motion on the merits. (<i>Carlton v. Quint</i> (2000) 77 Cal.App.4th 690, 697 [“It is well settled that the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of motion. This rule applies even when no notice was given at all.”].) Code Civ. Proc. § 473(b) provides in pertinent part, “The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other

pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . . . Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.”

Code Civ. Proc. § 473(b) permits a court to grant relief from a judgment, dismissal, order or other proceeding taken against a party on the grounds of “mistake, inadvertence, surprise or excusable neglect.” A court must grant relief upon a showing by an attorney declaration of mistake, inadvertence, surprise or neglect.

A motion seeking relief under Section 473(b) must be brought within 6 months of entry of the judgment. (Civ. Proc. Code § 473(b).)

On June 15, 2026, the Court entered Adjemian’s default on the Cross-Complaint filed by John Mussen. (ROA 251.) Adjemian filed this motion on July 6, 2026. (ROA 281.) Thus, the motion is timely.

Where an “attorney affidavit of fault” is filed, there is no requirement that the attorney's mistake, inadvertence, etc. be excusable. Relief must be granted even where the default resulted from inexcusable neglect by defendant's attorney. (*Standard Microsystems Corp. v. Winbond Electronics Corp.* (2009) 179 Cal.App.4th 868, 897.)

Adjemian’s counsel has made a showing of inadvertence. Adjemian’s counsel neglected to calendar the response deadline when he received the Cross-Complaint from Mussen. (Quinn Dec., ¶ 1.)

The motion is timely and Adjemian has established a proper ground for setting aside the default. Thus, the motion should be granted.

In granting relief based on an “attorney affidavit of fault,” the court must “direct the attorney to pay reasonable compensatory legal fees and costs” to the opposing counsel or parties. (Code Civ. Proc. § 473(b).) Mussen is self-represented and contends that he has spent approximately 20 hours in “prepar[ing] default-related papers, review[ing] and oppos[ing] the ex parte application, review[ing] the present motion and proposed answer,

		research[ing] the applicable law, and prepar[ing] this opposition.” (Mussen Dec., ¶ 7.) Mussen requests the maximum penalty of \$1,000. Mussen is a self-represented litigant. The only fees or costs Mussen may have incurred in connection with this motion was perhaps a fee for electronic filing, though Mussen does not provide any evidence of such a fee. Sanctions do not appear warranted at this juncture. Thus, the Court will not order Adjemian’s counsel to pay any sanctions. Adjemian shall file the Answer to the Cross-Complaint attached to the motion within 7 days of this ruling. Adjemian shall give notice of this ruling.
5	Blood vs. Huntington Beach Hospital	Huntington Beach Hospital’s Motion to Compel Further Responses to Form Interrogatories (Set One) No. 17.1 is GRANTED. Plaintiff Heather Jeane Blood is ordered to serve a further, verified, code-compliant response, without objections, to Form Interrogatory no. 17.1, as it relates to Requests for Admission nos. 2, 3, 4, 7, 9, 10, 12, 13-41, 44, 46, and 47-73, within 20 days of the notice of ruling. Defendant’s request for monetary sanctions is GRANTED. <u>Legal Standard</u> A response to interrogatories is due within 30 days after service. (Code Civ. Proc., §§ 2030.260, subd. (a), 1010.6, subd. (a)(3)(B).) A party who fails to serve a timely response “waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product.” (Code Civ. Proc., § 2030.290, subd. (a); <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 404.) Each answer must be as complete and straightforward as the information reasonably available to the responding party permits. (Code Civ. Proc., § 2030.220, subd. (a).) “Where the question is specific and explicit, an answer which supplies only a portion of the information sought is wholly insufficient. Likewise, a party may not provide deftly worded conclusionary answers designed to evade a series of explicit questions. [Citation.]” (<i>Deyo v. Kilbourne</i> (1978) 84 Cal.App.3d 771, 783.) Upon receipt of the responses, the propounding party may move for an order compelling further responses if it deems an answer to be evasive or incomplete, or an objection to be without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).) The motion must be accompanied by a meet and confer declaration and a separate statement, and notice of the motion generally must be given within 45 days of the service of the verified response. (Code Civ. Proc., § 2030.300, subds. (b)(1), (c); Cal. Rules of Court, rule 3.1345(a)(2).)

Defendant served its Form Interrogatories, Set One, on Plaintiff by electronic service on February 20, 2026, making Plaintiff's responses due March 24, 2026. (Code Civ. Proc., §§ 2030.260, subd. (a), 1010.6, subd. (a)(3)(B).) At Plaintiff's request, the parties agreed in writing to extend her deadline to 5:00 p.m. on March 27, 2026. (Code Civ. Proc., § 2030.270.) That agreed date was not further extended by section 1010.6, which applies only to a time period or date prescribed by statute or rule of court. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) Plaintiff did not serve her verified responses until March 30, 2026. The responses were untimely, and, accordingly, Plaintiff has waived her objections to the interrogatories, including the "General Objections" asserted in her responses, as well as any right to respond by reference to documents under section 2030.230. (Code Civ. Proc., § 2030.290, subd. (a).) Plaintiff has not sought relief from the waiver.

Defendant has satisfied the requirements for bringing its Motion. The Motion was filed within 45 days of the service of the verified responses, and it is accompanied by a separate statement and by a meet and confer declaration describing defense counsel's April 3, 2026 letter, which requested code-compliant supplemental responses by April 17, 2026, and counsel's May 6, 2026 reminder to Plaintiff, at her deposition, of her obligation to respond. (Code Civ. Proc., § 2030.300, subds. (b)(1), (c); Cal. Rules of Court, rule 3.1345(a)(2).) Plaintiff never supplemented her responses. The request for sanctions is properly made in the notice of motion. (Code Civ. Proc., § 2023.040.)

The Court further finds Plaintiff's response to Form Interrogatory no. 17.1 is evasive and incomplete. The interrogatory required Plaintiff, for each response to Defendant's Requests for Admission that was not an unqualified admission, to state the number of the request, state all supporting facts, identify all persons with knowledge of those facts, and identify all supporting documents and the person who has each. Plaintiff asserted no objection to the interrogatory, and her answer does none of these things: it does not identify a single request by number; it states no facts, instead incorporating her responses to the requests for admission by reference; it identifies no witnesses; and it refers generally to three categories of documents without identifying who has them.

Monetary sanctions against the party who unsuccessfully makes or opposes the motion are mandatory, unless the Court finds that party acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2030.300, subd. (d).) Sanctions may be awarded even though no opposition to the motion was filed. (Cal. Rules of Court, rule 3.1348(a).)

Because the Court grants the Motion, and because Plaintiff has not shown substantial justification for her position or that a sanction would otherwise be unjust, monetary sanctions are mandatory. (Code Civ. Proc., § 2030.300, subd. (d).) Plaintiff served untimely and evasive responses, did not respond to Defendant's April 3, 2026 meet-and-confer letter, and did not supplement

		her responses after being reminded of her obligations at her May 6, 2026 deposition. Her self-represented status does not exempt her from compliance with the Civil Discovery Act. (<i>Rapleyea v. Campbell</i> (1994) 8 Cal.4th 975, 984-985.) Plaintiff was served with Defendant’s notice of motion on May 8, 2026, which expressly stated that Defendant seeks \$500 in monetary sanctions against her (Code Civ. Proc., § 2023.040), and she never opposed the request. The \$500 requested is reasonable relative to the expenses Defendant incurred in preparing and bringing the Motion. (Bocker Decl., ¶ 19.) Moving party to give notice by mail.
6	Dodson vs. Lacilento	Motion to Seal Defendant Arthur J. LaCilento’s unopposed motion to seal certain excerpts from the Memorandum of Points and Authorities in Support of Defendant LaCilento’s Demurrer is GRANTED. Under current law, certain court records are presumptively confidential, including paternity case files in actions filed before January 1, 2023. (See Family Code, § 7643, subd. (a).) Family Code section 7643, subdivision (a) provides, in pertinent part: “all papers and records, other than the final judgment, pertaining to the action or proceeding, whether part of the permanent record of the court or of a file in a public agency or elsewhere, are subject to inspection and copying only in exceptional cases upon an order of the court for good cause shown.” Here, the action underlying this legal malpractice case (“Underlying Action”) commenced in 2015. (Notice of Lodging, Exh. 1). As a designated paternity case, the record in the Underlying Action is confidential. The motion to seal the portions in the Memorandum of Points and Authorities in Support of Defendant referring to this record is granted. Defendant LaCilento to give notice. Demurrer to First Amended Complaint Defendant Arthur J. LaCilento’s demurrer to the first through six causes of action asserted in Plaintiff Nicole Dodson’s First Amended Complaint (“FAC”) is SUSTAINED. LaCilento’s unopposed request for judicial notice is granted. In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. <i>Blank v. Kirwan</i>, 39 Cal.3d 311, 318 (1985). A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) As an initial matter, Plaintiff concedes that her first cause of action for breach of the covenant of good faith and fair dealing and her sixth cause of

action for intentional infliction of emotional distress should be dismissed. The demurrer is sustained as to the first cause of action for breach of the covenant of good faith and fair dealing and the sixth cause of action for intentional infliction of emotional distress without leave to amend.

Second Cause of Action for Legal Malpractice

LaCilento contends the second cause of action for legal malpractice is barred by the statute of limitations set forth in Code of Civil Procedure section 340.6. “A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred.” (*Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232.) On demurrer, “the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.” (*Ibid.* [internal quotation marks omitted].)

Legal malpractice claims are governed by Code of Civil Procedure section 340.6, which states: “An action against an attorney for a wrongful act or omission, other than for actual fraud, arising in the performance of professional services shall be commenced within one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the facts constituting the wrongful act or omission, or four years from the date of the wrongful act or omission, whichever occurs first.” (Code Civ. Proc., § 340.6, subd. (a).) Thus, the statute provides “two distinct and alternative limitation periods: *one* year after actual or constructive *discovery*, or *four* years after *occurrence* (the date of the wrongful act or omission), whichever occurs first.” (*Radovich v. Locke-Paddon* (1995) 35 Cal.App.4th 946, 966.)

Under the discovery rule, a plaintiff does not have to discover all the relevant facts supporting a cause of action. (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1111.) But “[o]nce the plaintiff has a suspicion of wrongdoing, and therefore an incentive to sue, she must decide whether to file suit or sit on her rights.” (*Ibid.*)

Plaintiff and Defendant LaCilento entered into an attorney-client contract on August 18, 2021. (FAC ¶ 8.) LaCilento substituted out as Plaintiff’s attorney in October 2023. (Notice of Lodging, Exh. 17.)

The second cause of action alleges LaCilento: (a) colluded with opposing counsel, (Bonnie Rosen, Esq.); (b) failed to pursue child support for Plaintiff; (c) failed to pursue “back” child support for Plaintiff; (d) failed to pursue reimbursement for pregnancy and delivery expenses; (e) coerced Plaintiff into hiring a “fake” investigator; (6) hollered and cursed at Plaintiff; (7) failed to argue that Plaintiff was never served with the petition; (8) failed to get an answer on-file for Plaintiff; (9) failed to pursue DNA testing of the putative father; (10) failed to pursue drug testing of the putative father; (11) failed to obtain any discovery documents from the putative father; (12) failing to act upon Plaintiff’s allegations of sexual abuse; (13) charged \$5,000 for an anti-SLAPP motion LaCilento never

filed; (14) failed to recognize obviously “fake” court orders; (15) committed HIPAA violations (concerning psych eval); (16) failed to obtain a paternity-litigation budget for Plaintiff in the Underlying Action; (17) failed to hold putative father in contempt for not filing a judgment; (18) failed to advocate the rights of the minor child under Indian Child Welfare Act; (19) failed to advocate for Plaintiff’s constitutional right to parent; and (20) failed to halt the termination of Plaintiff’s right to custodial access. (FAC ¶ 59.)

Although Plaintiff realized that LaCilento colluded with opposing counsel on or about August 16, 2024 (FAC ¶ 10), Plaintiff knew or should have known of all the facts required to put her on notice of a potential claim in October 2023. The wrongdoing LaCilento is alleged to have committed was completed while LaCilento served as Plaintiff’s attorney. (See FAC ¶ 59.) Because Plaintiff had notice or information of circumstances that would put her on inquiry in October 2023, Plaintiff’s lawsuit is time-barred under Code of Civil Procedure section 340.6. The demurrer to the second cause of action is sustained.

Third Cause of Action for Fraud/Misrepresentation

The elements of a claim for intentional misrepresentation are (1) misrepresentation of a material fact, (2) knowledge of falsity, (3) intent to defraud, (4) justifiable reliance, and (5) damages. (*Manderville v. PCG&S Group, Inc.* (2007) 146 Cal.App.4th 1486, 1498.) Fraud causes of action must be pled with specificity. “...This particularity requirement necessitates pleading facts which ‘show how, when, where, to whom and by what means the representations were tendered.’” (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73, quoting *Hills Trans. Co. v. Southwest* (1968_ 266 Cal.App.2d 702, 707.) “ ‘Promissory fraud’ is a subspecies of the action for fraud and deceit. A promise to do something necessarily implies the intention to perform; hence, where a promise is made without such intention, there is an implied misrepresentation of fact that may be actionable fraud.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.) The elements of promissory fraud are; (1) a promise made regarding a material fact without any intention of performing it; (2) the existence of the intent not to perform at the time the promise was made; (3) intent to deceive or induce the promisee to enter into a transaction; (4) reasonable reliance by the promisee; (5) nonperformance by the party making the promise; and (6) resulting damage to the promise. (*Behnke v. State Farm Gen. Ins. Co.* (2011) 196 Cal.App.4th 1443, 1453.) As with any other form of fraud, each element of a promissory fraud claim must be alleged with particularity.” (*Rossberg v. Bank of America N.A.* (2013) 219 Cal.App.4th 1481, 1498.) “...This particularity requirement necessitates pleading facts which ‘show how, when, where, to whom and by what means the representations were tendered.’” (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73, quoting *Hills Trans. Co. v. Southwest* (1968_ 266 Cal.App.2d 702, 707.)

The third cause of action alleges LaCilento colluded with opposing counsel and knowingly made false representations to Plaintiff. (FAC ¶ 65.) LaCilento represented to Plaintiff that he would fight to obtain custody of her 10-year old boy, fight to obtain child support, and fight to obtain discovery documents. (*Id.* at ¶ 66.) The FAC, however, does not allege how, when, where, and by what means the representations were made and, thus, does not meet the particularity requirement. The demurrer is sustained as to the third cause of action.

Fourth Cause of Action for Fraud upon the Court

A cause of action for fraud comprises of five elements: (1) misrepresentation; (2) knowledge of falsity; (3) intent to defraud; (4) justifiable reliance; and (5) resulting damage. (*Manderville v. PCG&S Group, Inc.* (2007) 146 Cal.App.4th 1486, 1498.) However, fraud upon the court “embrace[s] only that species of fraud which does or attempts to defile the court itself, or is a fraud perpetrated by officers of the court.” (*Appling v. State Farm Mutual Auto. Ins. Co.* (9th Cir. 2003) 340 F.3d 769, quoting *In re Levander* (9th Cir. 1999) 180 F.3d 1114, 1119.) “Fraud upon the court includes both attempts to subvert the integrity of the court and fraud by an officer of the court. Furthermore, it ‘must involve an unconscionable plan or scheme which is designed to improperly influence the court in its decision.’ ” (*Pumphrey v. K.W. Thompson Tool Co.* (9th Cir. 1995) 62 F.3d 1128, 1131 [internal citations omitted].)

The fourth cause of action alleges LaCilento colluded with opposing counsel and created a false record in Plaintiff’s paternity proceedings. (FAC ¶¶ 75, 77.) Despite Plaintiff’s doubts regarding whether the putative father is Plaintiff’s son’s biological father, LaCilento instructed Plaintiff to address the putative father as the biological father, lest Plaintiff “appear ‘crazy’ ”. (FAC ¶ 77.)

The FAC’s allegations are insufficient to constitute a cause of action for fraud upon the court. The FAC does not adequately allege an unconscionable plan or scheme designed to improperly influence the court in its decision. The demurrer to the fourth cause of action is sustained.

Fifth Cause of Action for Civil Conspiracy

The elements of a civil conspiracy are the formation and operation of the conspiracy and damage resulting to plaintiff from an act done in furtherance of the common design.” (*Stueve Bros. Farms, LLC v. Berger Kahn* (2013) 222 Cal.App.4th 303, 323 [citations omitted].) “The major significance of a conspiracy cause of action lies in the fact that it renders each participant in the wrongful act responsible as a joint tortfeasor for all damages ensuing from the wrong ... regardless of the degree of his activity. The essence of the claim is that it is merely a mechanism for imposing vicarious liability; it is not itself a substantive basis for liability. Each member of the conspiracy becomes liable for all acts done by others pursuant to the conspiracy, and for

		all damages caused thereby.” (<i>Id.</i> at pp. 323-324 [internal quotation marks and citations omitted].) The fifth cause of action alleges LaCilento colluded with opposing counsel to “rig” the Underlying Action and “judicially kidnap [Plaintiff’s] 10-year old boy.” (FAC ¶ 83.) Counsel agreed LaCilento “would do a lousy job representing [Plaintiff]” and “that the putative father would be awarded sole and exclusive custody.” (<i>Id.</i> at ¶ 84.) As discussed above, the underlying torts of legal malpractice and fraud have not been adequately pled as to LaCilento. The demurrer is sustained as to the fifth cause of action. Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve within 15 days of service of the notice of ruling. Defendant LaCilento to give notice. <u>Motion to Strike Portions of First Amended Complaint</u> Defendant Arthur J. LaCilento’s motion to strike portions of Plaintiff Nicole Dodson’s First Amended Complaint (“FAC”) is DENIED as moot. In light of the court’s concurrent ruling regarding LaCilento’s demurrer, the motion to strike is denied as moot. The Case Management Conference is continued to November 19, 2026, at 09:00 am in Department C10. Defendant LaCilento to give notice.
7	Ketzel vs. Laguna Beach Police Department	Defendant City of Laguna Beach moves for summary judgment on the Complaint of Plaintiff Hunter Ketzel. For the following reasons, the motion is DENIED. The court OVERRULES Defendant City’s evidentiary objection nos. 3, 6, and 7 to the Ketzel Declaration. The court does not rule on the remainder of objections asserted by Defendant City or Plaintiff, as they are not material to the disposition of this motion. (Code Civ. Proc., § 437c(q).) <u>Standard on MSJ</u> Under Code of Civil Procedure section 437c(c), a summary judgment motion shall be granted if all the papers submitted show there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. A defendant meets its burden on summary judgment by showing that the plaintiff cannot prove its causes of action, or by establishing a complete defense to the plaintiff’s causes of action. (Code Civ. Proc., 437c(p)(2).) If a defendant does not meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (<i>Binder</i>

v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 840.) If the defendant meets this initial burden, the burden shifts to the plaintiff to produce evidence demonstrating the existence of a triable issue of material fact. (Code Civ. Proc., § 437c(p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850-851.)

First Cause of Action (Whistleblower Retaliation)

The Complaint pleads a single cause of action for whistleblower retaliation in violation of Labor Code section 1102.5. According to the Complaint, Plaintiff complained of incidents wherein Plaintiff was instructed to generate an arrest report for arrests that would require Plaintiff to make false statements on those official police reports. (Compl. ¶¶ 15-18.)

Labor Code section 1102.5(b) is California's general whistleblower statute. (*McVeigh v. Recology San Francisco* (2013) 213 Cal.App.4th 443, 468.) It provides in relevant part that: "An employer . . . shall not retaliate against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information, . . . to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance, . . . if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation, regardless of whether disclosing the information is part of the employee's job duties." (Lab. Code, § 1102.5(b).)

In *Lawson v. PPG Architectural Finishes, Inc.*, the California Supreme Court explains the standard governing Section 1102.5 claims on summary judgment. (*Lawson v. PPG Architectural Finishes, Inc.* (2022) 12 Cal.5th 703, 717-718.) The court explained that:

Section 1102.6 provides the governing framework for the presentation and evaluation of whistleblower retaliation claims brought under section 1102.5. First, it places the burden on the plaintiff to establish, by a preponderance of the evidence, that retaliation for an employee's protected activities was a contributing factor in a contested employment action Once the plaintiff has made the required showing, the burden shifts to the employer to demonstrate, by clear and convincing evidence, that it would have taken the action in question for legitimate, independent reasons even had the plaintiff not engaged in protected activity."

(*Id.* at p. 718.)

Disclosures indisputably made in "the context of *internal personnel matters* involving a supervisor and her employee, rather than the disclosure of a legal violation," do not amount to whistleblowing. (*Patten v. Grant Joint Union High School Dist.* (2005) 134 Cal.App.4th 1378, 1384–1385 *disapproved of on other grounds by Lawson v. PPG Architectural Finishes, Inc.* (2022) 12 Cal.5th 703.) In *Patten*, a principal had received complaints from females students of a male teacher peering into the girls'

locker room. (*Id.* at p. 1382.) The principal disclosed to her district superiors for personnel action. (*Ibid.*)

The principal admitted to merely forwarding complaints “for personnel action.” (*Id.* at p. 1385.) The *Patten* court noted that “[t]o exalt these exclusively internal personnel disclosures with whistleblower status would create all sorts of mischief. Most damagingly, it would thrust the judiciary into micromanaging employment practices and create a legion of undeserving protected ‘whistleblowers’ arising from the routine workings and communications of the job site. [Citation.]” (*Id.* at p. 1385.)

The Complaint alleges Defendants LBPB and City were responsible for assuring their policies complied with relevant federal and state law (*see* Compl. ¶ 6), Plaintiff complained about incidents violating LBPB policy (*see, e.g.,* Compl. ¶¶ 17, 19, 23, 27), and the incidents involved, among other things, Plaintiff’s being ordered by superiors to make false statements on police reports.

Penal Code Section 118.1(a) provides in relevant part that: “Every police officer who, in their capacity as a peace officer, knowingly and intentionally makes, or causes to be made, any material statement in a peace officer report, . . . regarding the commission or investigation of any crime, knowing the statement to be false, is guilty of filing a false report, punishable by imprisonment”

Here, Plaintiff establishes by a preponderance of the evidence that he engaged in protected activity and retaliation for that protected activity was a contributing factor in his termination. Unlike the situation in *Patten* where a high school principal merely forwarded to district supervisors the reports she had received from students regarding school personnel, Plaintiff here was ordered to perjure himself on official police reports (*see* Ptlf.’s Sep. St. No. 7 [citing among others Ketzl Decl. ¶¶ 6-7]), refused to do so (*see* Ketzl Decl. ¶ 7), and reported the incident to a superior officer (Ketzl Decl. ¶ 7).

Defendant City fails to meet its shifted burden to show by clear and convincing evidence that Plaintiff was terminated for legitimate, independent reasons.

The undisputed facts show Plaintiff was evaluated each day by his assigned Field Training Officer (“FTO”), and those evaluations are memorialized in daily observation reports (“DORs”). (*See* Pltf.’s Sep. St. No. 12.) The DOR has 27 different categories, with ratings from one to four. A score of reflects the trainee “Exceeds Standards,” a score of two is “Meets Standards,” a score of three is “Needs Improvement,” and a score of four is “Unacceptable.” (*See id.*) During his training, Plaintiff was evaluated by at least eight FTOs. (*See* Pltf.’s Sep. St. No. 13.)

There are triable issues of fact as to whether Plaintiff was terminated for a legitimate, independent reason. Defendant argues and submits evidence showing Plaintiff received mixed marks during his tenure at the department.

		(Yacoubian Decl., Ex. A, B, C.) The “Needs Improvement” marks were reported in DORs as early as 04/19/2024 and continued in June, July, and August. (Yacoubian Decl., Exs. A, B, C, E, H, J.) Plaintiff, however, submits evidence that DORs and supervisor weekly reports most critical of Plaintiff’s performance are unreliable because they were created after the protected activity. Plaintiff reported incidents starting no later than 06/26/2024. (See Ketzel Decl. ¶¶ 10-11.) The supervisor weekly reports created on or after 06/26/2024 contain significant critical comments and reflect subpar marks on multiple categories, whereas weekly reports created prior to 06/26/2024 are less critical and reflect satisfactory performance. (See Def.’s Ex. 5.) This is sufficient to support a reasonable inference that the reports are unreliable or set up the stage for pretextual termination. In sum, there are triable issues of fact as to whether there was a legitimate, independent ground for Plaintiff’s termination. The court will DENY the motion for summary judgment. Plaintiff to give notice.
8	Bubonic vs. Park Newport LP	Plaintiff Mary Ann Denise Bubonic’s motions to compel Defendants Bakar Properties, Inc.’s and Park Newport LP’s further responses to Plaintiff’s demand for inspection of documents, set one, and requests for sanctions is OFF CALENDAR. On 8/14/26, Plaintiff filed a notice of withdrawal stating that both of the foregoing motions are withdrawn in their entirety, including the accompanying requests for monetary sanctions of \$3,000.00. Defendants Bakar Properties, Inc.’s and Park Newport LP’s request for monetary sanctions is DENIED. Defendants contend that Plaintiff owes sanctions pursuant to Code Civ. Proc. § 2031.310, subd. (h) and Code Civ. Proc. § 2023.010, subd. (i) because Plaintiff failed to adequately meet and confer prior to filing the instant motions. However, the court finds that Plaintiff’s meet and confer attempt was sufficient. (See Teppara Decl., ¶ 5, Ex. 5). Plaintiff shall give notice.